American Postal Workers Union
AFL-CIO

Mark Dimondstein, President

P A R L I A M E N T A R Y
P R O C E D U R E



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Joyce B. Robinson, Director

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Introduction

Parliamentary Law originated as a set of rules adopted from the principals and customs of the British Parliament. In 1801, while serving as Vice President and the presiding officer of the U.S. Senate, Thomas Jefferson wrote his "Manual of Parliamentary Practice," which is considered the first parliamentary principals in this country.

On February 19, 1876, General Henry M. Robert published the first edition of "Robert's Rules of Order." Many unions today have placed modified versions of "Robert's Rules of Order" in their constitution and bylaws to prevent disruption during meetings and to ensure that democracy prevails.

The Purpose of Parliamentary Procedure

The purpose of Parliamentary Procedure is to:

- Facilitate the transaction of business.
- Promote cooperation and harmony.
- Guarantee that all members have equal rights and the same privileges.
- Ensure that the majority has the right to decide, but that the minority has rights which must be protected.

The Basic Principals of Parliamentary Procedure

Parliamentary Procedure has five basic principles:

1. The majority rules all the time, except when a 2/3 vote is required.
2. All members have equal rights.
3. The minority abides by the decision of the majority.
4. All motions should be debated freely and fairly.
5. Discuss only one subject at a time.

Special Note: ***The union's constitution and bylaws are the governing authority by which the union operates. "Robert's Rules of Order" governs in the absence of constitutional language.***

The President's Responsibilities

It's the president's/chair's responsibility to formulate an agenda of all items to be discussed at the union meeting. He/she should:

- Advise the secretary to post a notice on all union bulletin boards with the date, time, and place of the meeting at least two weeks in advance of the scheduled meeting date.
- Ask the secretary to follow-up with a telephone call to all officers and shop stewards reminding them to attend the meeting.
- Give a copy of all correspondence to the secretary to read at the meeting and to keep the original copy for the union's file.
- Notify committee chairpersons to prepare a report for presentation at the meeting.
- Invite guest speakers to the meeting and advise them of the allotted time for their presentation.
- Review a typewritten copy of the minutes prior to the scheduled meeting date.
- Ensure that the secretary/treasurer have typewritten copies of their reports ready for distribution at the meeting.
- Appoint committee members for specific assignments and projects.
- Serve as an ex-officio member on most committees. The president should never attempt to control the decisions of committee members. If they have questions or need clarification on their mission, the president may advise them of the committees' responsibilities.
- Keep the meeting moving and inform the membership of what's going on.
- Be impartial, courteous, and allow for discussion and debate.
- Protect the minority and give them an opportunity to express their opinion on the pending motion.

Special Note: ***The president should not serve on the Election Committee.***

The Secretary's Responsibilities

The secretary should manually and electronically record minutes of the executive board and membership meetings. He/she should:

- Ensure that typewritten copies of the previous membership and executive board meetings are available for distribution at the next meeting.
- Read correspondence at union meetings and respond, when appropriate.
- Record an accurate wording of all motions as stated, indicating the maker of the motion and whether the motion was adopted or lost. ***The wording of the motion, which appears in the official minutes, should be the same as stated by the chair, when the vote was taken.***
- Maintain the names of all elected and/or appointed candidates and keep a record of all votes cast on both sides in a ballot or division vote.
- Write brief, impartial, and minutes with a short summary of officers and committee reports. If available, attach typewritten reports to the minutes.

Special Notes: <u>The Secretary Should Not</u>: Record discussions, personal opinions, or report on motions which did not receive second.

1. ***Minutes should include: The name of the local, the type of meeting (Membership, Executive Board, Special), the date and place where the meeting was held, and the time the meeting started and adjourned. The secretary or the person recording the minutes in the secretary's absence should <u>print and sign his/her name</u> to verify that the minutes are official.***

2. ***If the minutes from the previous meeting were corrected, the corrections should be noted in the minutes of the next meeting. If the minutes are normally posted in the local's newspaper and/or on the union's bulletin boards, corrections should be posted.***

   Example: The minutes of the March meeting were corrected to show that $500.00 and not $5,000.00, as originally stated, was contributed to the American Cancer Society. The first item in the April Minutes should begin with the secretary saying, "The minutes of the March meeting were corrected to show that $500.00 and not $5,000.00, was contributed to the American Cancer Society." It provides an official record that the correction was made.

The Treasurer's Responsibilities

The treasurer is trusted with the responsibility of keeping an accurate accounting of the local's/state's funds. Also, he/she is responsible for:

- Filing the mandatory forms with the government.
- Reading and distributing a typewritten report to the membership at union meetings on the union's finances.
- Ensuring that no ATM or Debit capability are allowed on local's/state's credit cards.
- Checking expenditures to ensure that no personal charges are made to the Union's credit card and that individuals making charges submits receipts, hotel statements, etc. **Credit cards are for local/state business ONLY!**

Special Note: ***It is suggested that local/state unions adopt a credit card policy, outlining the union officials authorized to use the union's credit card and the procedures which must be followed to prevent abuse.***

Authorizing Authority to Spend Union Funds

Prior to spending union funds, the local/state union must have authorization and approval from one of the following authorities:

- Language appearing in the local/state constitution and bylaws authorizing expenditures.
- Language in the local/state budget adopted at a union meeting or at a state convention authorizing the expenditures.
- A motion adopted by the executive board authorizing expenditures, only if the executive board has the constitutional authority to spend money.
- A motion adopted at a union meeting or at a state convention authorizing expenditures.
- Statutory Law.

Special Note: ***This does not include necessary expenses needed to run a union office or expenses required by law.***

Sample Agenda for Union Meetings

If the local/state constitution and bylaws does not contain an agenda, the sample agenda listed below can be utilized.

- **Call to Order** - The chair should call the meeting to order in a timely manner, except if waiting for a quorum.

- **Roll Call of Officers** - The secretary should call the roll of all officers and should note if the officer is present, absent, or excused.

- **Previous Executive Board and Membership Meetings Minutes** - The secretary should distribute typewritten copies of minutes from the previous executive board and membership meetings. If the executive board meeting was held prior to the membership meeting, an oral report may be given. But a typewritten report should be distributed to the executive board at the next meeting.

- **Treasurer's Report** - The treasurer's report should be typewritten and passed out at union meetings.

- **Welcome New Attendees** - The chair should recognize new attendees, ask them to stand, identify themselves, and their work area. He/she should ask new attendees to ask questions if they don't understand motions or reports.

- **Officers' Reports** - Officers should either give a brief oral report at the union meeting or a typewritten report to the secretary to incorporate into the record.

- **Correspondences** - The secretary should read all official correspondences to the membership that need action.

- **Old Business** - Unfinish business from the previous meeting should be discussed prior to adjournment.

- **New Business** - When the chair calls for new business, the membership may discuss items of concern.

- **Adjournment** - If there is no further business to discuss, a member can make a motion to adjourn the meeting.

Rules for Conducting Union Meetings

All members are equal at union meetings and have the rights to: Make motions, participate in debate, and to vote. The following rules should apply:

- The membership is the highest-ranking body and a quorum legally must be present to conduct business.
- The vote of the majority decides, except when a 2/3 vote is required.
- Debate must be confined to the pending question.
- When speaking or debating, discuss the issue, ***never attack the person***.
- No one may speak a second time in debate if there is someone who desires to speak and has not been afforded an opportunity to do so.
- A member may not speak more than twice, on the same motion, at the same meeting.
- A motion is out of order which violates local, state, or federal law and/or the constitution and bylaws of the organization.
- A member can change his/her vote up to the time the result is announced.
- Only one main motion or resolution may be considered at a time. It must be disposed of before another main motion can be made.
- Once a question is decided, it is not in order to bring up that motion again at that meeting, unless it is to request that the motion be reconsidered or rescinded.
- Address a Request for Information to the chair and not to the speaker.
- A second is not required for motions made by an executive board or a committee.
- The role of the parliamentarian is to advise the chair.
- No harassment or sexual comments shall be tolerated at union meetings.

Tips for Running a Meeting

To run a smooth and effective union meeting follow these steps:

- **Start Promptly and End on Time** - Introduce officers and recognize first time attendees.

- **Make the Meeting Interesting** - Use audio-visual aids such as videos and PowerPoints.

- **Follow the Order of Business** - Normally, included in the local's/state's constitution and bylaws.

- **Know the Constitutions and Bylaws** - Become familiar with the local's, state's, and national's constitutions and bylaws.

- **Encourage New Members to Ask Questions** - Ensure that they understand the motions being discussed.

Utilizing Committees

Committee members and the chairperson are normally appointed by the president. There are two types of committees: Standing and Special Committees.

1. **Standing Committees** - Are listed in the local's/state's constitution and bylaws and continue from year to year, (Constitution Committee, Election Committee, and Safety and Health Committee, etc.).

2. **Special Committees** - Are appointed by the president for an assignment. When that task is completed, the committee's duties are over, (Committee appointed to plan a local picnic).

    - The Committee members should select a secretary to keep minutes of the committee's activities.

    - The committee chairperson should give a report which includes: The names of committee members, the specific action recommended, along with an explanation of why this action is appropriate.

    - The recommendations made by a committee may be amended by the membership at the meeting prior to its acceptance.

Main Motion

A main motion introduces business or a proposal to the organization for action. The terms ***"motion"*** and ***"question"*** mean the same thing. When first stated, it is a motion. When repeated by the chair, it is referred to as a question. The maker of the motion must obtain the floor by: Rising, addressing the chair, and obtaining recognition.

Only one main motion can be considered at a time. When a second is required, the motion must be made by one member and seconded by another. When a main motion is before the membership, it must be accepted, rejected or disposed of in some way before another motion can be introduced.

Making a Motion Example

When making a motion, the member should follow the format listed below:

- The member rises or raises their hand and addresses the chair, "Mr." or "Madam" Chair."
- The chair recognizes the member by nodding, pointing, or calling out the member's name. The member says, "I move that the state contributes $500.00 to the Postal Employees' Relief Fund."
- After being recognized by the chair, another member seconds the motion.
- The chair restates the motion, "It has been moved and seconded that the state contributes $500.00 to the Postal Employees' Relief Fund."
- The maker of the motion is given the first opportunity to speak.
- When it appears that no one else wants to discuss the motion, the chair asks, "Are you ready for the question?" If no one desires to speak, the vote is taken.
- The chair repeats the motion and calls for a vote. "It has been moved and seconded that the state contributes $500.00 to the Postal Employees' Relief Fund. All those in favor say "Aye," those opposed say "No."
- The chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost."

Speaking on the Motion

When attending a state/national convention, state your name and local. Explain the importance of your motion and be prepared to answer questions. Use notes to refresh your memory. Helpful tips are:

- Take time to get settled. Take a deep breath and let it out, but not into the microphone.
- Adjust the microphone; make sure it is picking up your voice and hold on to the floor microphone to help steady your nerves.
- Do not tap on the microphone while you are speaking. Do not giggle, even if you are nervous.
- Avoid being hostile or talking down to the delegates.

Methods of Voting on the Motion

Voting takes place after debate has been exhausted on a motion or the previous question has been called. Listed below are methods of voting.

- **Voice Vote (Viva Voce)** - "All those in favor say ***Aye***, those opposed say ***No***."
- **Show of Hands** - Voting by a show of hands is sometimes used. "All those in favor raise your hand, those opposed raise your hand."
- **Rising Vote** - If the vote appears to be close, members may be instructed to stand. If the result is clear, a count is not necessarily taken. "All those in favor please stand, those opposed please stand."
- **Division of the Assembly** - During a meeting, any member may call for a vote count by calling out, ***"Division." The chair must grant this request***. The actual count should be taken by rising, unless the result is obvious.
- **Secret Ballot** - Some members might hesitate to vote publicly their true sentiments. A motion can be made and properly seconded to vote by secret ballot. ***The motion is undebatable and requires a majority vote to pass***.

Special Note: ***An election of officers or delegates to a convention must by secret ballot.***

Voting Procedures

The local/state constitution and bylaws normally outlines the voting procedures required for elections and to pass motions. Types of voting procedures are:

- **Majority Vote:** To secure a majority vote the motion must receive more than half the votes cast. Unless specified otherwise, many motions require a majority vote.

  Example: If ***19*** votes are cast, a majority is ***10 votes***.

- **2/3 Vote:** A 2/3 vote may be required to pass specific motions. The motion must receive 2/3 of the votes cast for it to be adopted.

  Example: If ***30*** votes are cast, a 2/3 vote is ***20 votes.***

- **Plurality Vote:** The plurality voting method is utilized in elections. The wining candidate receives the largest number of votes cast.

  Example: Three people are running for office: Candidates A, B, and C. Candidate A gets **100 votes**, Candidate B gets **150 votes**, and Candidate C gets **155 votes**. ***Candidate C will be declared the winner.***

- **Ballot Vote:** - This method is used in elections held at union meetings. Members mark the ballot and deposit it into a ballot box.

When the Chair Can Vote

The chair should protect his/her impartiality by voting only in the following circumstances:

1. **To Break a Tie on a Motion**

   Example: There are ***35 Aye*** votes and ***35 No*** votes, the chair may vote "**AYE,"** to break the tie to pass the motion.

2. **To Create a Tie on a Motion**

   Example: There are ***39 Aye*** votes and ***38 No*** votes, the chair may vote "**NO,"** to create a tie, so there is less than a majority and the motion is lost.

When the Chair Can Vote Cont.

3. **To Affect the Results of a Motion Requiring a 2/3 Vote**

   Example A. There are *39* ***Aye*** votes and *20* ***No*** votes. The chair votes "**AYE**," the vote is now ***40 Aye*** votes and ***20 No*** votes. The motion gets 2/3 of the votes cast and is adopted.

   Example B. There are ***40*** **Aye** votes and ***20 No*** votes, the chair votes "**NO**." The vote is now ***40 Aye*** votes and ***21 No*** votes. The motion does not get 2/3 of the votes cast and is lost.

4. **In a Vote by Ballot**
   The chair has a right to vote by ballot. However, if a tie occurs, the chair cannot vote to break the tie because he/she cannot vote a second time.

5. **During a Roll Call Vote -** The chair should vote last, during a roll call vote, to prevent influencing the vote of other members.

Special Note: ***The chair should never speak or debate from the chair. If he/she wishes to speak on the motion, he/she should turn over the chair to the vice-chair.***

What the President and/or Executive Board Cannot Do

The president and/or executive board has limited authority, as the membership is the ruling body. What the president and/or executive board cannot do include:

- The executive board cannot overrule a motion previously adopted at a membership meeting or state convention, unless that motion violates either the local's, state's, or national's constitution and bylaws and/or local, state, or federal law.

- The president does not have the authority to alter the minutes or treasurer's report without the approval of the body, at a meeting.

- The president does not have the authority to refuse to carry a motion unless that motion violates local, state, or federal law, and/or the constitution and bylaws of the organization.

Motions Ranked in Order of Importance

Motions are ranked in order of their importance and can interrupt debate on the main motion. Motions ranks are:

1. **Privileged Motions**
2. **Incidental Motions**
3. **Subsidiary Motions**
4. **Main Motion Motions**

1. **Privileged Motions** - are not related to the pending question, but are so urgent that they take priority over all other motions.

2. **Incidental Motions** - arise out of main motions or other pending questions and must be decided before the pending question, or before other business is discussed. It "***holds***" up or "***stops***" the order of business. The chair must see to it that they are not used as a form of debate.

3. **Subsidiary Motions** - dispose of, or change, a main motion, and/or many other motions, interrupts debate and must be considered before a vote is taken on the main motion.

4. **Main Motion** - the original motion. The chair must recognize the maker of the motion. It requires a second, is debatable, is amendable, requires a simple majority vote to pass and can be reconsidered.

Privileged Motions

Privileged motions have nothing to do with the pending question or motion, but are urgent or important and ***are allowed to interrupt the consideration of other questions and take priority over them***. Only four privileged motions are generally used at meetings.

Privileged Motions Ranked in Order of Priority:

1. **Fix the Time for Adjournment**
2. **To Adjourn**
3. **To Recess**
4. **The Question of Privilege**

1. **<u>To Fix the Time for Adjournment</u>** - The motion has priority over all others. It's designed to set the place and time of the next meeting when the place and time are not specified in the constitution and bylaws. It is not in order when someone is speaking. However, it is in order after the membership has voted to adjourn, providing the chair has not announced the result of the vote. ***The motion requires a second, is undebatable, can be amended by altering the time, cannot be reconsidered, and requires a majority vote to pass.***

   Example: Sister White rises, is recognized by the chair, and states, "I move that the next meeting be held on the third Saturday of next month at 7:00 p.m. at the East End Library." The chair waits for the motion to receive a second and states, "It has been moved and seconded that the next meeting be held on the third Saturday of next month at 7:00 p.m. at the East End Library," those in favor say " Aye," those opposed say "No." The chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost."

2. **<u>To Adjourn</u>** - This motion terminates the meeting. It is not in order when someone is speaking, when another motion has the floor, or when voting or verifying a vote, except in case of one taken by ballot. It is in order after the ballots have been collected and before the result has been announced. Before putting forth the motion to adjourn, the chair has a responsibility to make sure that no important matters have been overlooked. If there is an important matter requiring action, the mover should be asked to wait until after the matter has been discussed to make his/her motion to adjourn. ***The motion requires a second, is undebatable***, ***cannot be amended***, ***cannot be reconsidered, and requires a majority vote to pass.***

   Example: During the February Meeting, Brother Jones rises, is recognized by the chair, and says, "I move that the meeting adjourn." The chair responds, "Brother Jones, we must decide if the local is sending a bus to Washington, DC on March 19 to participate in the "Save the Postal Service Rally." After this matter is decided, you can make your motion." The motion to send a bus to Washington, DC on March 19 to participate in the "Save the Postal Service Rally" is made, seconded, debate occurs and the motion is adopted. Next, the chair recognizes Brother Jones, who says "I move that the meeting adjourn." The chair waits for the motion to receive a second and states, "It has been moved and seconded to adjourn the meeting, those in favor say "Aye," those opposed say "No." The chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." If it's adopted, the meeting adjourns.

3. **<u>To Recess</u>** - A recess is a short intermission of the meeting normally no more than 15 minutes. During a convention, the Motion to Recess calls for a specific time for the recess to begin and a specific time for the convention to resume. It is not in order when someone is speaking or another motion has the floor. ***The motion requires a second, is undebatable, can be amended as to the length of time for the recess, cannot be reconsidered, and requires a majority vote to pass.***

   Example: Sister Smith rises, is recognized by the chair, and says, "I move that the meeting recess for 15 minutes to enable the secretary to check on the cost of airline tickets to attend the craft conferences in Las Vegas, Nevada. The chair waits for the motion to receive a second and restates the motion, and says, "Those in favor of the motion say "Aye," those opposed say "No." The chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." If the motion is adopted, the meeting recesses for 15 minutes and resumes after the recess.

4. **<u>Questions of Privileges</u>** - This motion refers to questions relating to the rights and privileges of the organization, or any of its members. It can interrupt a member's speech, but cannot interrupt voting or verifying a vote. When such a question is raised, the chair rules on whether or not it's a question of privilege. ***If a motion is required, it's treated as a Main Motion and it must be seconded, is debatable, can be amended, can be reconsidered, and requires a majority vote to pass.*** Once the question is disposed of, debate resumes.

   Example: **<u>Question of Priviledge Affecting an Individual</u>** - Sister Williams rises, and when she catches the chair's eye says, "Mr." or "Madam" Chair, I rise to a question of personal privilege." The chair says, "State your question." Sister Williams continues, "Brother Thompson is harassing me about my vote and I would like for it to stop." The chair responds, "Brother Thompson, Sister Williams has a right to vote as she see fits. Stop harassing her or you will be asked to leave meeting."

   Example: **<u>Question of Privilege Affecting the Organization</u>** - Brother Hernandez rises, and when he catches the chair's eye says, "Mr." or "Madam" Chair, I rise to a question of privilege affecting the organization." The chair directs him to state his question, Brother Hernandez continues, "We have an invited guest and this motion deals with a controversial issue and should be considered in a closed session." The chair says, "Brother Hernandez, it's not necessary to go into a closed session." Brother Hernandez disagrees and states, "With apologies to our guest, I move that this meeting go into a closed session."

Question of Privilege Affecting the Organization Example Cont.

As Brother Hernandez disagreed with the chair's ruling, the motion is now treated as a main motion. The chair waits for a second and restates the motion, "It has moved and seconded that this meeting go into a closed session." The chair calls for debate. Following debate, the chair repeats the motion and a vote is taken. The chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." If the motion is adopted, the guest is thanked and excused.

Incidental Motions

Incidental motions must be decided before any other business can be discussed. These motions have no special rank and yield to Privileged Motions. Listed below are a few incidental motions that are often used in meetings.

1. **Point of Order**
2. **Appeal from the Decision of the Chair**
3. **Objection to the Consideration of a Question**
4. **To Withdraw a Motion**
5. **To Suspend the Rules**

1. **Point of Order** - It is the duty of the chair to enforce the rules and orders of the organization, without debate or delay and the right of every member, who notices a breach of a rule, to insist upon its enforcement by raising a Point of Order. ***The motion does not require a second, it's undebatable, it's not amendable, and cannot be reconsidered. The chair rules; no vote is needed, except when the chair is challenged.***

   Example A: Brother Brooks rises, is recognized by the chair, and says, "Madam" or "Mr." Chair, I rise to a point of order." The chair requests that Mr. Brooks states his point of order. "That motion is a violation of Article 5 of the local's constitution and bylaws," states Brother Brooks. The chair stops and refers to Article 5 of the constitution and bylaws and states, "Brother Brooks, the point is well taken. The motion is out of order."

   Example B: The chair stops and refers to Article 5 of the constitution and bylaws and says, "Brother Brooks, the motion is not in violation of Article 5 of the local's constitution and bylaws and explains why." If there is no appeal, the original debate resumes.

2. **<u>Appeal from the Decision of the Chair</u>** - Appeal from the Decision of the chair is often referred to as a challenge. In **Example B.** above, if Brother Brooks objects to the chair's decision, he rises and says, **"I challenge the chair."** The motion is in order when someone is speaking and must be made immediately after the ruling is made by the chair. In the APWU, when challenged, the chair turns over the chair to the vice-chair. ***In the APWU, debate normally occurs between the chair and the person making the challenge. The motion requires a second, it's not amendable, can be reconsidered, and requires a majority vote to pass.***

   Example: Brother Brooks disagreed with the chair's ruling above and says, ***"I challenge the chair."*** In the APWU, when the chair is challenge, the chair steps down and allows the vice-chair to chair the meeting. **<u>But only for the challenge</u>**. The chair is allowed to speak twice, before and after the person making the challenge has spoken. After debate is completed, the vice-chair immediately states the question as follows: ***"All those in favor of upholding the decision of the chair, say "Aye," those opposed say "No."*** Next, the vice-chair states that either the "Ayes" have it and the decision of the chair is upheld, or the "Noes" have it and the decision of the chair is reversed." ***In a tie vote, the ruling of the chair is upheld.***

3. **<u>Objection to the Consideration of a Question</u>** - This motion allows the organization **<u>not to consider</u>** controversial questions. The objection can only be made when the principal motion is first introduced and before it has been debated. The motion is in order when someone is speaking. ***The motion does not requires a second, is undebatable, cannot be amended, can be reconsidered, and requires a 2/3 vote to pass.***

   Example: Sister Wright rises, is recognized by the chair, and says, " I move that the Union go on record in support of " A Women's Right to Choose." The motion is seconded. Prior to debate, Brother Davis rises, is recognized by the chair, and says, "Madam" or "Mr." Chair, I object to consideration of the question." The chair immediately says, ***"The consideration of the question has been objected to, shall the question be considered?"*** Those in favor say "Aye," those opposed say "No." Next, the chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." The motion must pass by a 2/3 vote to be adopted.

4. **<u>To Withdraw a Motion</u>** - Once a motion has been stated by the chair and seconded, it belongs to the assembly. However, the maker of the motion can withdraw it, even after the start of debate or after it's amended, providing no one objects.

4. **To Withdraw a Motion Cont.** - If an objection is raised, a vote must be taken to withdraw the motion**.** The motion is not in order when someone is speaking. ***The motion does not require a second, is undebatable, cannot be amended, can be reconsidered, and requires a majority vote to pass.***

   Example: Sister Bailey, the maker of the motion, says, "Madam" or "Mr." Chair, I withdraw my motion." The chair says, "Are there any objections to Sister Bailey withdrawing the motion?" The chair pauses, waits and says, "Hearing no objections, the motion is withdrawn." If somebody says, "I "object;" the chair will say "As there is an objection, we will vote on withdrawing the motion." "Those in favor of withdrawing the motion say "Aye," those opposed say "No." The chair either says, "The "Ayes" have it and the motion is withdrawn," or "The "Noes" have it and the motion is lost." If the motion is lost, debate resume on the motion originally on the floor.

5. **To Suspend the Rules** - The motion is designed to bring an important issue before the organization. The purpose of the suspension must be specified, and nothing else can be dicussed outside of what's specified in the motion. The motion is not in order when someone is speaking. ***The motion requires a second, is undebatable, cannot be amended, cannot be reconsidered, and requires a 2/3 vote to pass.***

   Example: Mr. Taylor says, "Madam" or "Mr." Chair, I move to suspend the rules and begin the nomination of officers." The chair waits for the motion to receive a second and states, "It has been moved and seconded to suspend the rules and begin the nomination of officers, those in favor say " Aye," those opposed say "No." The chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." If the motion passes by a 2/3 vote, the nomination of officers is before the assembly. If the motion is lost, debate resume on the motion originally on the floor.

Subsidiary Motions

Subsidiary motions are made while a main motion is pending, for the purpose of modifying it, to delay action, or otherwise dispose of the main motion. These motions yield to privileged and incidental motions. There are seven and they rank in the following order:

1. **To Lay on the Table**
2. **The Previous Question**
3. **To Limit or Extend Debate**

Subsidiary Motions Cont.

4. **To Postpone to a Certain/Definite Time**
5. **To Commit or Refer**
6. **To Amend**
7. **To Postpone Indefinitely**

1. **To Lay on the Table -** If the assembly seems unable to reach a conclusion, the motion can be tabled. **It is improper to place a time limit on when to remove the motion from the table**. When it is desired to take up the motion again, a motion is made to "remove the motion from the table." ***The motion must be taken from the table either later, at the same meeting after other business has been conducted, or at the next meeting. If not, it dies.*** During a convention, the adopted rules determine when a motion must be taken from the table. The motion is not in order when someone is speaking. ***The motion needs a second, is undebatable, cannot be amended, cannot be reconsidered, and requires a majority vote to pass***.

   Example: Brother Diggs rises, is recognized by the chair, and says, "I move that we give members a check for $50.00 for Christmas in appreciation of their membership." The motion is seconded. Following much debate, Sister Moore rises, is recognized by the chair, and says, "I move to table this motion." The motion receives a second. The chair says, "It has been moved and seconded to table this motion, those in favor say "Aye," those opposed say "No." The chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." A majority vote is required to table the motion.

2. **The Previous Question -** When someone says, "I move the previous question" or "I call for the question" or just says "question," they are asking to close debate and vote immediately on the motion that's on the floor. The motion is not in order when someone is speaking. ***The motion requires a second, is undebatable, cannot be amended, can be reconsidered, and requires a 2/3 vote to pass.***

   Example: "Brother Spenser rises, is recognized by the chair, and says, "I move that the local sponsor a picnic in the month of June." The motion is seconded and debate goes on, it seems, forever. Sister Thompson rises, is recognized by the chair, and says, "I call for the question." The motion receives a second. The chair restates the motion, "The previous question has been called for, all those in favor of cutting off debate, say "Aye," those opposed, say "No."

The Previous Question Example Cont. - The chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." If the motion passes by a 2/3 vote, the chair states, "Debate is closed." Next, the chair continues, "We now vote on the motion, that the local sponsor a picnic in the month of June. All those in favor of the motion, say "Aye," those opposed, say "No." The chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost."

3. **To Limit or Extend Debate** - A motion can be made to either limit or extend the time allowed to each speaker to debate and can also specify the number of speakers allowed to speak on each side of the motion. ***The motion should be made prior to the start of debate.*** The motion is not in order when someone is speaking. ***The motion requires a second, is undebatable, can be amended as to the length of time to limit or extend debate, can be reconsidered, and requires a 2/3 vote to pass.***

   Example "Limit Debate:" Brother Oliver rises, is recognized by the chair, and states, "I move that debate on this motion be limited to three (3) minutes per speaker." The chair waits for the motion to receive a second and states, "It has been moved and seconded that debate on this motion be limited to three (3) minutes per speaker. Those in favor of the motion say "Aye," those opposed say "No." Next, the chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." The motion must pass by a 2/3 vote to be adopted.

   Example "Extend Debate:" Sister Green rises, is recognized by the chair, and says, "I move that we extend the number of people to debate on each side from three (3) to five (5) people." The chair waits for the motion to receive a second and states, "It has been moved and seconded that we extend the number of people to debate on each side from three (3) to five (5) people. Next, the chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." The motion must pass by a 2/3 vote to be adopted.

4. **To Postpone to a Certain/Definite Time** - The motion is used to delay action on a motion until a different meeting or until after an event, (Allowing a guest to speak). When the postponed time comes, the motion is presented. Where several motions are postponed, they shall be considered in the order of the time that they were postponed until. The motion is not in order when someone is speaking. ***The motion requires a second, is undebatable, cannot be amended, cannot be reconsidered, and needs a majority vote to pass***.

   Example: Brother Adams rises, is recognized by the chair, and states, "I move that we purchase laptops for all officers and stewards." The motion is seconded.

To Postpone to a Certain Time Example Cont.

Debate occurs for an extended length of time. Sister Stewart rises, is recognized by the chair, and says, "I move that we postpone the debate on this motion until the next meeting." The chair waits for the motion to receive a second and states, "It has been moved and seconded that we postpone the debate on this motion until the next meeting." The chair calls for debate. Following debate, the chair repeats the motion and a vote is taken. Next, the chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost."

5. **To Commit or Refer** - If the original motion requires more information than is available at the meeting, it is proper to refer it to a committee. The committee's responsibilities should be included in the motion. The motion is not in order when someone is speaking. ***The motion requires a second, is debatable, is amendable, can be reconsidered, and requires a majority vote to pass.***

   Example: Brother Woods rises, is recognized by the chair, and states, "I move that the local purchase a union hall." The motion is seconded. After much debate, Sister McCoy rises, is recognized by the chair, and says, "I move that the motion be referred to a committee of four, and that the committee should report back to the assembly in two months outlining its progress." The motion is seconded. The chair calls for debate. Following debate, the motion is repeated by the chair and a vote is taken. Next, the chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost."

6. **To Amend** - An amendment is designed to improve or perfect the main motion and must have a direct bearing and be **germane** to the subject of that motion. There may never be more than two (2) amendments pending at the same time. Amendments may be adopted by **unanimous consent** without going through the amending process. The last amendment is always voted on first. After the amendment(s) is deposed of, the main motion is voted on as amended. A motion can be amended by: ***adding words***, ***inserting words***, ***striking out and inserting words***, or ***substituting an entire sentence or paragraph***. If the organization votes "no" on all the amendment(s), the motion is on the floor as it was originally worded. The motion is not in order when someone is speaking. ***The motion requires a second, is debatable, is amendable, can be reconsidered, and requires a majority vote to pass.***

   Example: Main Motion: - "I move that the local send delegates to the APWU Craft Conferences in Las Vegas, Nevada"

To Amend Example Cont.

1. **Amend By Adding Words** - "I offer an amendment to the main motion to add ***the number 8*** after the word send."

2. **Amend By Inserting Words** - "I offer an amendment to the main motion to insert the words ***at a cost not to exceed $15,000,*** after the word Nevada."

3. **Amend by Striking Out and Inserting Words** - "I offer an amendment to the main motion, ***delete the word delegates*** and ***insert the words officers and shop stewards***."

4. **Amend by Substituting an Entire Sentence or Paragraph** - "I offer an amendment to the main motion, ***I move that the local hold a Shop Stewards' Appreciation Dinner to raise funds to offset the cost of sending officers and shop stewards to the Craft Conferences in Las Vegas, Nevada."*** A new sentence was substituted for the original motion.

Motions Which Cannot Be Amended

There are many motions that cannot be amended. They include the motions:

- **To Adjourn**
- **Point of Order**
- **Appeal from the Decision of the Chair**
- **Objection to the Consideration of a Question**
- **To Withdraw a Motion**
- **To Suspend the Rule**
- **To Lay on the Table**
- **To Call for the Previous Question**
- **An Amendment of an Amendment**
- **To Postpone Indefinitely**
- **To Reconsider**

Amendments to Local/State Constitutions and Bylaws

Local/state constitutions cannot be in conflict with APWU's national constitution and bylaws. When it is necessary to amend the local's or state's constitutions and bylaws, a Constitution Committee is normally appointed by the president to either propose or review constitutional amendments and to recommend the appropriate action it deems necessary.

- All proposed amendments to a local's constitutions and bylaws must be read at the first meeting following its proposal and posted on union bulletin boards and publications. The amendment(s) must be read a second time and voted on at the next meeting.

- The state's constitution and bylaws govern the procedure for making amendments. ***All amendments should be voted on at that state convention.***

- The local's/state's constitution and bylaws should be distributed to members and/or delegates in attendance, along with the proposed amendments.

- ***Constitutional amendments should be voted on one at a time and not as a package***. A 2/3 vote of members voting at the meeting or delegates voting at a state convention is required for constitutional amendments to be adopted.

- If an amendment is posted to increase an officer salary, once the amendment is stated at the meeting, no additional amendment can be made to exceed the amount posted. It can be amended to decrease the amount posted. But can't be amended to pay less than the salary that the officer already is paid, per the constitution and bylaws.

  Example: Stewards are currently being reimbursed their union dues, which amounts to $25.00 monthly. A constitutional amendment was submitted to increase stewards' salaries from $25.00 monthly to $30.00 monthly and was read at the March meeting and posted. The constitutional amendment was read again at the April meeting. An amendment was made to strike out $30.00 and insert $35.00. ***This amendment is Out of Order. The increase was not posted***. It can be amended to lower the original proposed salary of $30.00 monthly, but cannot decreases the stewards' salary by less than $25.00 monthly**,** the original salary.

Special Note*: The logic is that members may support a $5.00 monthly increase in stewards' salaries and chose not to attend the meeting. However, they may not support a $10.00 monthly increase and had they been notified in advance, they may have chosen to attend the meeting to oppose that amendment.*

The Process of Amending a Motion

The main motion can never have more than two (2) amendments pending at the same time. The amendments must have a **direct bearing and be germane to the subject** of that main motion.

Example: Main Motion - Sister Lewis rises, is recognized by the chair, and states, "I move that the local send fifteen (15) delegates to the APWU Craft Conferences in Las Vegas, Nevada." The motion is seconded.

Primary or First Amendment - Brother Thompson rises, is recognized by the chair, and says, **"**I offer an amendment to the main motion that after the word Nevada, ***add the words and pay for airline fare, per diem, and for a hotel room."*** The motion is seconded; debate occurs.

Secondary or Second Amendment - Brother Garcia rises, is recognized by the chair, and says, "I offer an amendment to the main motion to, ***strike the words fifteen (15) delegates and insert the words ten (10) delegates who are either officers or shop stewards.*** The motion is seconded; debate occurs.

Steps to Follow When Voting on Amendments

1. ***First, vote on the amendment to the amendment (The second amendment).*** The chair says, "All those in favor of striking the words fifteen (15) delegates and inserting the words ten (10) delegates who are either officers and/or shop stewards, please raise your hands. All those opposed, please raise your hands. The motion is adopted," states the chair. ***A majority vote is required for adoption***.

2. ***Next, vote on the original amendment (The first amendment)***. The chair says, "All those in favor of adding the words and pay airline fare, per diem, and for a hotel room after the word Nevada, please raise your hands. All those opposed, please raise your hands. The motion is adopted," states the chair. ***A majority vote is required for adoption.***

3. ***Finally, vote on the Main Motion as amended***. The chair says, "All those in favor of the motion, as amended, that the local send ten (10) delegates, who are either officers or shop stewards, to the APWU Craft Conferences in Las Vegas, Nevada and pay for airline fare, per diem, and for a hotel room, please raise your hands; those opposed, to the motion, as amended, please raise your hands. The motion as amended is adopted," states the chair. ***A majority vote is required for adoption***.

7. **<u>To Postpone Indefinitely</u> -** This motion disposes of a question without bringing it to a vote. If possible, its effect is to entirely suppress the question throughout the meeting. The motion is not in order when someone is speaking. ***The motion requires a second, is debatable, is not amendable, can be reconsidered, and requires a majority vote to pass.***

   Example: Brother Edwards rises, is recognized by the chair, and says, " I move that the local purchase a cell phone for all the officers and stewards and pay the monthly bill." The motion is seconded. Much debate occurs. Sister Gonzales rises, is recognized by the chair, and states, "I move that we postpone this motion indefinitely." The motion is seconded. The chair restates the motion, "It has been moved and seconded that the motion, that the local purchase a cell phone for all the officers and stewards and pay the monthly bill be postponed indefinitely." The chair calls for debate. Following debate, the chair repeats the motion and a vote is taken. Next, the chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." If the motion passes, debate ends. However, the motion can be brought up again at a future meeting.

<u>Miscellaneous Motions</u>

There are normally two miscellaneous motions that are sometimes made during meetings. They are: The **Motion to Reconsider** and the **Motion to Rescind**.

1. **<u>Motion to Reconsider</u>** - A motion, which was either previously adopted or lost, can be reconsidered. The Motion to Reconsider must be made either later at the same meeting or at the next meeting, otherwise, it should not be considered. In a convention of more than one day, the Motion to Reconsider can be made only on either the same day, after other business has been disposed of, or the next day after the original vote was taken. The motion is in order when someone is speaking. ***The motion requires a second, is debatable, is not amendable, cannot be reconsidered again, and requires a majority vote to pass.***

   Example: A motion was lost at the April meeting. During the May meeting, Sister Mills rises, is recognized by the chair, and says, "I move that we reconsider the motion that was made at the April meeting that the local send 10 delegates to the state convention in New Orleans, Louisiana in September." The chair states, "Sister Mills did you vote to defeat this motion in the April meeting?" Sister Mills says, "Yes." The motion is seconded. The chair says, "A motion has been made and seconded that we reconsider the motion made in the April meeting that the local send 10 delegates to the state convention in New Orleans, Louisiana in August."

Motion to Reconsider Example Cont. - Next, the chair calls for debate on the Motion to Reconsider. Following debate, the chair repeats the motion and a vote is taken. The chair says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." If adopted, the chair asks the secretary to read the original motion from the April Meeting. No second is needed. The chair calls for debate on the original motion. Following debate, the chair repeats the motion and a vote is taken. The chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." ***No motion can be reconsidered twice***.

Special Notes:

1. ***The Motion to Reconsider must be made by a person who voted with the prevailing (winning) side in the first vote.***

2. ***Any member may second this motion.***

3. ***This motion cannot be used to reverse an action that has taken place such as if money has already been spent to attend a seminar, an event, conference, and/or convention, unless the money was spent without approval.***

4. ***If the Motion to Reconsider passes, debate starts over again on the original motion from the previous meeting and must be voted on again.***

5. ***Once a motion is reconsidered, it may not be reconsidered again.***

Motions Which Cannot be Reconsidered

There are many motions that cannot be reconsidered. They include the motions:

- **Fix the Time for Adjournment**
- **To Adjourn**
- **To Recess**
- **To Lay on the Table**
- **To Suspend the Rules**
- **A Previous Motion to Reconsider Cannot be Reconsidered Again**

2. **Motion to Rescind** - This motion is designed to nullify and reverse a previous decision of the organization and can be made by any member. If the ***motion to rescind*** passes, it completely disposes of the original motion. The motion is not in order when someone is speaking. ***The motion requires a second, is debatable, can be amended, can be reconsidered, and requires a 2/3 vote to pass.***

   Example: A motion was adopted at the June meeting to send eight (8) delegates to the Six-States Educational Conference in Honolulu, Hawaii in October. Brother Vincent hears about the motion and is furious. He attends the September meeting, is recognized by the chair, and says, "I move that we rescind the motion adopted at the June meeting to send eight (8) delegates to the Six-States Educational Conference in Honolulu, Hawaii in October." The motion receives a second. The chair restates the motion, "It has been moved and properly seconded that we rescind the motion adopted at the June meeting to send eight (8) delegates to the Six-States Educational Conference in Honolulu, Hawaii in October." The chair calls for debate. Following debate, the chair repeats the motion and a vote is taken. Next, the chair either says, "The "Ayes" have it and the motion is adopted," or "The "Noes" have it and the motion is lost." If the vote to rescind the previous motion is adopted, as the Six-States Educational Conference in Honolulu, Hawaii is not until October, the delegates are not authorized to attend the conference.

   Special Notes:

   1. ***The motion to rescind may be made by any member and can be made at any meeting at any time after the original motion was made and passed, as long as the event has not yet taken place.***

   2. ***Any member may second this motion.***

   3. ***This motion cannot be used to reverse an action that has taken place such as if money has already been spent to attend a seminar, an event, conference, and/or convention, unless the money was spent without approval.***

Glossary of Parliamentary Terms

Agenda - A detailed and specific list containing, in proper order, items of business to be brought before an organization at a particular or designated meeting.

Bylaws - The fundamental rules and laws which governs the affairs of an organization and defines the duties and privileges of its members and officers. The bylaws of an organization supersede any other parliamentary authority.

Chair - The presiding officer, regardless of his or her official title.

Division - Division of the assembly or simply the word "Division" is a method of taking a vote that physically counts members voting.

Ex-officio - By virtue of office, certain offices confer membership on certain committees; therefore, persons who are committee members because of an office they hold are called, "ex-officio members."

Germane - Closely related to, or having a direct bearing upon; used in relation to amendments which must be germane to the motion being amended.

Majority - One more than half of the votes cast.

Meeting - A single gathering of members in one room or area to transact business for a length of time during which members do not separate for longer than a short recess.

Motion - A formal proposal in which the organization takes certain actions and/or expresses certain views on a given subject.

Order of Business - An established procedure or plan, which prescribes the chronological order in which classes of subjects or business shall be considered, without specifying the time allotted to each.

Parliamentary Authority - The particular manual of parliamentary law and procedure, which an organization has adopted as containing the rules of order it shall use in the conduct of its business.

Pending - A question is said to be pending once it is stated by the chair and until it disposed of either permanently or temporarily. If several questions are pending at the same time, the last one stated by the chair is called the immediately pending question because it will be the first one to be considered.

Glossary of Parliamentary Terms Cont.

Plurality - The largest number of votes cast for a candidate when there are more than two choices.

Precedence - Has priority over.

Previous Question - The motion proposing to stop further debate and amendment, and calling for an immediate vote on the immediately pending question, or the immediately pending question and such other pending questions as are specified in the motion.

Pro tem - For the time being, temporarily.

Quorum - The minimum number of members that must be present in order to legally transact business. Ordinarily an organization's bylaws specify the number of its members that shall constitute a quorum; in the absence of such a provision, a quorum is a majority of the entire membership. A quorum refers to the number of members present, not the number voting.

Recess - A short intermission in the organization's proceedings, which does not close the meeting and after which, business will immediately be resumed as if it had never been interrupted.

Resolution - A form of main motion usually of such length, formality, and/or complexity that it should be precisely worded and submitted in written form.

Session - A single meeting or a series of connected meetings (as in a convention or conference) devoted to a single order of business, program, agenda, or announced purpose.

Unanimous Consent - An informal method of voting, used when it seems apparent the organization is in agreement on a subject of decision, provided there is no objection; silence gives consent.

Viva Voce - A voice vote.

Yields - In the precedence of motions, if one motion takes precedence over another motion, that motion is said to yield to the first.

Using the Correct Motion

1. To present an idea for consideration and action - ***Make a motion***.

2. To improve a pending motion - ***Make an amendment***.

3. To limit discussion - ***Move to limit debate***.

4. To end debate and to bring the pending action to a vote - ***Call for the previous question***.

5. You question the decision of the chair - ***Appeal the decision of the Chair***.

6. You believe that the motion being discussed deserves more study by a small group of members - ***Move to refer to a committee***.

7. You would like more time to think about the pending motion and would like to have it taken up again later that meeting or at the next meeting - ***Move to postpone to a certain/definite time***.

8. To temporarily set aside the pending motion in order to take up more pressing business - ***Move to lay on the table***.

9. To resume consideration of the motion that was temporarily set aside - ***Move to take from the table***.

10. To take a short break - ***Move to recess***.

11. To end the meeting - ***Move to adjourn***.

12. You realize it will be impossible to complete business at this meeting but no date has been set for the next monthly meeting - ***Move to fix time for the next meeting***.

13. A motion has been offered that is so inflammatory that you feel it should not be considered by your organization - ***Object to consideration***.

14. A vote has been taken, but you doubt the accuracy of the results - ***Move for division***.

15. You made a motion but, as a result of discussion on it, you now feel that it is no longer necessary - ***Move to withdraw***.

Using the Correct Motion Cont.

16. The chair is not following the announced agenda and you feel that he/she should - ***Rise to a point of order***.

17. To bring an agenda item to the floor that is out of its regular order - ***Move to suspend the rules***.

18. A motion was adopted earlier in the meeting, additional information has been received, you want to discuss the subject all over again - ***Move to reconsider***.

19. A motion was adopted at the last meeting, but you now feel it was an unwise action and should be reversed - ***Move to reconsider.***

20. A motion was adopted at the last meeting; you were not present and feel it is not beneficial to the union - ***Move to rescind***.

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